Should we pursue the acquisition of a European supply-chain competitor?

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Revision needed: yes

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Situation

Approve an 8–10 week diagnostic and a partnership or minority JV with a call option now. Defer any control acquisition until a multi-deal programme is committed. The decision horizon is 12–24 months. The company has not stated its segment, European footprint, home jurisdiction or ownership.

Regulatory baseline

- The Commission published draft Merger Guidelines on 30 April 2026. Consultation closed on 26 June 2026. The final text is unconfirmed ([source](https://ec.europa.eu/commission/presscorner/api/files/document/print/en/ip_26_918/IP_26_918_EN.pdf)).
- Council and Parliament agreed on 11 December 2025 to mandate national FDI screening in all Member States ([source](https://www.consilium.europa.eu/en/press/press-releases/2025/12/11/foreign-direct-investment-council-and-parliament-reached-political-agreement-to-improve-fdi-screening/)).
- The Foreign Subsidies Regulation applies at €500m EU turnover, plus more than €50m of foreign financial contributions in three years ([source](https://single-market-economy.ec.europa.eu/single-market/public-procurement/foreign-subsidies-regulation_en)).

Market baseline

- Proventis recorded 278 logistics deals in H2 2025. Strategic buyers offered higher valuations than financial investors ([source](https://proventis.com/wp-content/uploads/2026/02/2026-02-02_MA-Facts_Logistics_H2-final.pdf)).
- Supply-chain software deals show a median 3.23x revenue. Continental Western Europe shows 2.55x, from 8 deals ([source](https://aventis-advisors.com/supply-chain-logistics-software-valuation-multiples/)).
- The ECB held its deposit rate at 2.50% on 29 October 2026. Markets priced a 67% chance of a December hike ([source](https://www.cnbc.com/2026/10/29/european-central-bank-interest-rates.html)).

Sources:

- Commission opens consultation on draft of new Merger Guidelines — https://ec.europa.eu/commission/presscorner/api/files/document/print/en/ip_26_918/IP_26_918_EN.pdf
- Foreign direct investment: Council and Parliament reached political agreement to improve FDI screening - Consilium — https://www.consilium.europa.eu/en/press/press-releases/2025/12/11/foreign-direct-investment-council-and-parliament-reached-political-agreement-to-improve-fdi-screening/
- Foreign subsidies regulation - Internal Market, Industry, Entrepreneurship and SMEs — https://single-market-economy.ec.europa.eu/single-market/public-procurement/foreign-subsidies-regulation_en
- M&A FACTS — https://proventis.com/wp-content/uploads/2026/02/2026-02-02_MA-Facts_Logistics_H2-final.pdf
- Supply Chain and Logistics Software Valuation Multiples: EV/EBITDA & EV/Revenue — https://aventis-advisors.com/supply-chain-logistics-software-valuation-multiples/
- European Central Bank keeps key interest rate on hold at 2.5% — https://www.cnbc.com/2026/10/29/european-central-bank-interest-rates.html

Complication

The EU is rewriting its merger rules during 2026, changing how competitor deals get reviewed. The Commission [published draft Merger Guidelines](https://ec.europa.eu/commission/presscorner/api/files/document/print/en/ip_26_918/IP_26_918_EN.pdf) on 30 April 2026. The final text is unconfirmed. The draft gives more weight to scale and efficiencies, but offers no guarantee. Tighter FDI screening compounds the shift. The [revised regulation applies from 17 January 2028](https://legalblogs.wolterskluwer.com/competition-blog/the-new-foreign-investment-screening-regulation-from-trilogues-to-the-official-journal/), so national regimes will differ for most of the window. Rates add pressure. The ECB held at 2.50% on 29 October 2026, and [markets priced a 67% chance of a December hike](https://www.cnbc.com/2026/10/29/european-central-bank-interest-rates.html). Overlap with any target is still unknown. An in-depth review would add up to [90 working days](https://competition-policy.ec.europa.eu/system/files/2021-02/merger_control_procedures_en.pdf). Below EU thresholds, national authorities such as the CMA can still call in deals. Strategic buyers also [paid more than financial investors](https://proventis.com/wp-content/uploads/2026/02/2026-02-02_MA-Facts_Logistics_H2-final.pdf) in H2 2025. A competitor deal now means committing capital before the review standard settles. This note resolves that tension.

Sources:

- Commission opens consultation on draft of new Merger Guidelines — https://ec.europa.eu/commission/presscorner/api/files/document/print/en/ip_26_918/IP_26_918_EN.pdf
- The New Foreign Investment Screening Regulation: From Trilogues to the Official Journal — https://legalblogs.wolterskluwer.com/competition-blog/the-new-foreign-investment-screening-regulation-from-trilogues-to-the-official-journal/
- European Central Bank keeps key interest rate on hold at 2.5% — https://www.cnbc.com/2026/10/29/european-central-bank-interest-rates.html
- Merger control procedures - Competition Policy — https://competition-policy.ec.europa.eu/system/files/2021-02/merger_control_procedures_en.pdf
- M&A FACTS — https://proventis.com/wp-content/uploads/2026/02/2026-02-02_MA-Facts_Logistics_H2-final.pdf

Key Question

Within 12–24 months, should the board enter Europe by partnership rather than competitor acquisition?

Answer

The board should approve an 8–10 week diagnostic and a European partnership with a call option now, deferring any control acquisition.

The partnership tests the European revenue thesis with limited capital and no control premium. The diagnostic settles segment, overlap, FSR, FDI and call-in exposure first. This avoids integration costs that [average 120 percent of run-rate synergies](https://www.mckinsey.com/capabilities/people-and-organizational-performance/our-insights/eight-basic-beliefs-about-capturing-value-in-a-merger) and an in-depth merger review of [90 working days](https://competition-policy.ec.europa.eu/system/files/2021-02/merger_control_procedures_en.pdf).

Move to control only with a committed multi-deal programme and a dedicated M&A capability.

Sources:

- Eight basics for capturing deal value in mergers — https://www.mckinsey.com/capabilities/people-and-organizational-performance/our-insights/eight-basic-beliefs-about-capturing-value-in-a-merger
- Merger control procedures - Competition Policy — https://competition-policy.ec.europa.eu/system/files/2021-02/merger_control_procedures_en.pdf

Supporting Arguments

Regulatory rules will stay unsettled during the deal window, so diagnostics come first. The Commission's consultation on draft Merger Guidelines [closed on 26 June 2026](https://ec.europa.eu/commission/presscorner/api/files/document/print/en/ip_26_918/IP_26_918_EN.pdf). The final text remains unconfirmed. The draft favours [scale benefits and efficiencies supportive of “European champions.”](https://www.skadden.com/insights/publications/2026/05/ecs-draft-merger-guidelines) That may help a consolidation case, but it guarantees nothing. Member States must all run [screening mechanisms with a common minimum scope](https://www.consilium.europa.eu/en/press/press-releases/2025/12/11/foreign-direct-investment-council-and-parliament-reached-political-agreement-to-improve-fdi-screening/), including investments made through EU subsidiaries. The Foreign Subsidies Regulation applies at [€500 million in EU turnover](https://single-market-economy.ec.europa.eu/single-market/public-procurement/foreign-subsidies-regulation_en) plus foreign contributions above €50m. The acquirer's non-EU funding is still unknown.

Price competition and rising rates will erode control-deal value over the next 12–24 months. In H2 2025 logistics M&A, [strategic buyers offered a higher valuation than financial investors.](https://proventis.com/wp-content/uploads/2026/02/2026-02-02_MA-Facts_Logistics_H2-final.pdf) Benchmarks are thin. The [median 3.23x revenue and 13.3x EBITDA](https://aventis-advisors.com/supply-chain-logistics-software-valuation-multiples/) rests on few deals. Western Europe's 2.55x revenue comes from eight deals. A cost-synergy price ceiling therefore risks losing auctions to rivals. Debt costs add pressure: [money markets priced in a 67% chance of a December hike](https://www.cnbc.com/2026/10/29/european-central-bank-interest-rates.html).

A partnership with a call option should test the European thesis before any control bid. It limits capital at risk, avoids a control premium and stays reversible. Joint ventures carry risk. [McKinsey research finds 40% to 60% miss their original objectives](https://helixr.com/joint-ventures-rarely-fail-launch-fail-eighteen-months-in/). The evidence gathered holds no matching failure rate for acquisitions, so the comparison stays open. McKinsey ties value creation to [at least one deal per year in a program](https://gfmag.com/features/mckinsey-says-multiple-smaller-deals-work-best/). It adds that infrequent, large deals tend to hurt value creation. A one-off acquisition falls outside that evidence. The board should approve control deals only with a funded multi-deal programme and a dedicated M&A team.

Sources:

- Commission opens consultation on draft of new Merger Guidelines — https://ec.europa.eu/commission/presscorner/api/files/document/print/en/ip_26_918/IP_26_918_EN.pdf
- EC's Draft Merger Guidelines Open New Arguments for Merger Parties — https://www.skadden.com/insights/publications/2026/05/ecs-draft-merger-guidelines
- Foreign direct investment: Council and Parliament reached political agreement to improve FDI screening - Consilium — https://www.consilium.europa.eu/en/press/press-releases/2025/12/11/foreign-direct-investment-council-and-parliament-reached-political-agreement-to-improve-fdi-screening/
- Foreign subsidies regulation - Internal Market, Industry, Entrepreneurship and SMEs — https://single-market-economy.ec.europa.eu/single-market/public-procurement/foreign-subsidies-regulation_en
- M&A FACTS — https://proventis.com/wp-content/uploads/2026/02/2026-02-02_MA-Facts_Logistics_H2-final.pdf
- Supply Chain and Logistics Software Valuation Multiples: EV/EBITDA & EV/Revenue —

https://aventis-advisors.com/supply-chain-logistics-software-valuation-multiples/
- European Central Bank keeps key interest rate on hold at 2.5% — https://www.cnbc.com/2026/10/29/european-central-bank-interest-rates.html
- Why a lot of Joint Ventures fail 18 months in — https://helixr.com/joint-ventures-rarely-fail-launch-fail-eighteen-months-in/
- McKinsey Says Multiple, Smaller Deals Work Best - Global Finance Magazine — https://gfmag.com/features/mckinsey-says-multiple-smaller-deals-work-best/

So What

Approve an 8–10 week diagnostic now; the board owns the decision, the CFO and counsel deliver. Skipping it commits capital blind: integration costs average 120% of run-rate synergies. Run a European partnership or minority JV with a call option in parallel. Choose acquisition only with a committed multi-deal programme and dedicated M&A capability. Define the objective, overlap, FSR/FDI and call-in exposure, and leverage limit before choosing between OPT-A, OPT-C and OPT-D.

Sources:

- Eight basics for capturing deal value in mergers — https://www.mckinsey.com/capabilities/people-and-organizational-performance/our-insights/eight-basic-beliefs-about-capturing-value-in-a-merger

Requester-provided, not sourceable

The facts below concern only the requester. No public source can establish them, so this briefing counts none of them as sourced; the requester supplies them, and every statement that rests on them is as reliable as that information.

- The precise nature of our business (supply-chain software, logistics services, procurement or other) and our current geographic footprint, including any existing European presence.
- The strategic objective driving the interest and any specific targets already identified or approached.
- Our acquisition budget or acceptable deal-size range, available cash, debt capacity and the board's leverage and dilution tolerance.
- Our home jurisdiction and ownership structure (public or private, state-linked or not), which affect FDI screening and Foreign Subsidies Regulation exposure.
- Our internal M&A and integration experience, management bandwidth and the board's or shareholders' appetite for risk.
- Our current market share and overlapping customers in European markets, insofar as these are not publicly disclosed.
- The required decision timeline and hurdle rate or return threshold for acquisitions.

Insufficiently sourced

This format's sourcing policy is strict. The 29 item(s) below did not meet it. They stayed in the analysis that produced this briefing; treat every statement that rests on them as unverified.

- **research item 2**: https://www.skadden.com/insights/publications/2026/05/ecs-draft-merger-guidelines is not a trusted domain (host 'www.skadden.com' matches no reputation tier).
- **research item 5**: https://legalblogs.wolterskluwer.com/competition-blog/the-new-foreign-investment-screening-regulation-from-trilogues-to-the-official-journal/ is not a trusted domain (host 'legalblogs.wolterskluwer.com' matches no reputation tier).
- **research item 6**: https://ieu-monitoring.com/editorial/eu-commission-clears-acquisition-of-schenker-by-dsv/608080 is 571 days old, past the format's limit.
- **research item 6**: https://ieu-monitoring.com/editorial/eu-commission-clears-acquisition-of-schenker-by-dsv/608080 is not a trusted domain (host 'ieu-monitoring.com' matches no reputation tier).
- **research item 7**: https://aventis-advisors.com/supply-chain-logistics-software-valuation-multiples/ is not a trusted domain (host 'aventis-advisors.com' matches no reputation tier).
- **research item 8**: https://proventis.com/wp-content/uploads/2026/02/2026-02-02_MA-Facts_Logistics_H2-final.pdf is not a trusted domain (host 'proventis.com' matches no reputation tier).
- **stakeholder item 5**: https://www.marketscreener.com/quote/stock/DSV-A-S-65289675/news/Selling-Deutsche-Bahn-s-Schenker-to-DSV-would-cost-thousands-of-jobs-labour-union-warns-47764896/ is not a trusted domain (host 'www.marketscreener.com' matches no reputation tier).
- **stakeholder item 7**: https://proventis.com/wp-content/uploads/2026/02/2026-02-02_MA-Facts_Logistics_H2-final.pdf is not a trusted domain (host 'proventis.com' matches no reputation tier).
- **Stakeholder Target owners and management (sellers)**: position not sourced (searched for: Public statements from owners or management of a specific European supply-chain target on selling to a competitor. No target has been identified, and the searches returned only precedent-deal coverage.).
- **Stakeholder Acquirer's own board and shareholders**: position not sourced (searched for: The company's board or shareholder positions on European M&A. The requester has not provided ownership, governance or risk-appetite information, and no public statement exists in the research.).
- **Stakeholder Acquisition-finance lenders and bond investors**: position not sourced (searched for: Lender or credit-investor appetite for European logistics and supply-chain acquisition financing in 2026. Only ECB rate-decision coverage was found, which does not document lender positions.).
- **Stakeholder Customers (shippers and procurement buyers) of the target and the acquirer**: position not sourced (searched for: Customer or shipper-association positions on consolidation among European supply-chain providers. No relevant public statements were found, and overlapping customers are not yet identified.).
- **risk item 4**: https://www.skadden.com/insights/publications/2026/05/ecs-draft-merger-guidelines is not a trusted domain (host 'www.skadden.com' matches no reputation tier).
- **risk item 5**: https://www.sidley.com/en/insights/newsupdates/2026/01/key-takeaways-from-the-european-commissions-new-foreign-subsidies-regulation-fsr-guidelines is not a trusted domain (host 'www.sidley.com' matches no reputation tier).
- **risk item 6**: https://www.whitecase.com/insight-our-thinking/foreign-subsidies-regulation-

quarterly-fsrq-q2-2026 is not a trusted domain (host 'www.whitecase.com' matches no reputation tier).
- **Risk RISK-004** (impact evidence): not sourced (searched for: Documented delays, conditions or blocked logistics and supply-chain deals under national FDI screening in the EU. The searches in this task returned nothing on FDI outcomes in the sector.).
- **risk item 11**: https://proventis.com/wp-content/uploads/2026/02/2026-02-02_MA-Facts_Logistics_H2-final.pdf is not a trusted domain (host 'proventis.com' matches no reputation tier).
- **Risk RISK-006** (impact evidence): not sourced (searched for: Evidence on control premiums paid and value destroyed by overpayment in European logistics or supply-chain acquisitions. No such result was returned in this task.).
- **risk item 13**: https://www.cnbc.com/2026/10/29/european-central-bank-interest-rates.html is not a trusted domain (host 'www.cnbc.com' matches no reputation tier).
- **risk item 14**: https://www.ebc.com/forex/ecb-interest-rate-decision-october-2026 is not a trusted domain (host 'www.ebc.com' matches no reputation tier).
- **risk item 15**: https://www.marketscreener.com/quote/stock/DSV-A-S-65289675/news/Selling-Deutsche-Bahn-s-Schenker-to-DSV-would-cost-thousands-of-jobs-labour-union-warns-47764896/ is not a trusted domain (host 'www.marketscreener.com' matches no reputation tier).
- **risk item 19**: https://www.jonesday.com/en/insights/2026/06/germany-proposes-overhaul-of-merger-control-thresholds-and-enforcement is not a trusted domain (host 'www.jonesday.com' matches no reputation tier).
- **risk item 20**: https://legalblogs.wolterskluwer.com/competition-blog/germanys-12th-gwb-amendment-a-paradigm-shift-for-merger-control-or-just-catching-up/ is not a trusted domain (host 'legalblogs.wolterskluwer.com' matches no reputation tier).
- **risk item 21**: https://aventis-advisors.com/supply-chain-logistics-software-valuation-multiples/ is not a trusted domain (host 'aventis-advisors.com' matches no reputation tier).
- **Risk RISK-011** (impact evidence): not sourced (searched for: Evidence quantifying value lost when European logistics or supply-chain deals are priced off thin comparable sets. No result addressed this.).
- **Research finding 42**: no source found (searched for: [CRIT-001] Requester-provided strategic objective, segment, European footprint and hurdle rate. The brief's own requester-provided section confirms these are absent, and no public source can supply them.).
- **Option OPT-A**: https://gfmag.com/features/mckinsey-says-multiple-smaller-deals-work-best/ is not a trusted domain (host 'gfmag.com' matches no reputation tier).
- **Option OPT-B**: https://www.trenvista.net/en/freight/ec-clears-dsv-acquisition-db-schenker/ is not a trusted domain (host 'www.trenvista.net' matches no reputation tier).
- **Option OPT-C**: https://helixr.com/joint-ventures-rarely-fail-launch-fail-eighteen-months-in/ is not a trusted domain (host 'helixr.com' matches no reputation tier).

Options

ID	Title	Recommendation	Time horizon
OPT-A	Gated mid-sized bolt-on acquisition as the first deal of a European M&A programme	recommended	medium-term
OPT-B	Transformational acquisition of a scale European strategic	not-recommended	medium-term
OPT-C	European competitor partnership or joint venture with an option to acquire	acceptable	short-term
OPT-D	Organic European build-out without acquisition	acceptable	long-term

Risks

ID	Category	Likelihood	Impact	Timeframe
RISK-001	regulatory	medium	major	short-term
RISK-002	regulatory	high	minor	short-term
RISK-003	regulatory	low	moderate	short-term
RISK-004	regulatory	medium	moderate	short-term
RISK-005	strategic	high	major	medium-term
RISK-006	financial	high	major	short-term
RISK-007	financial	high	moderate	short-term
RISK-008	human-capital	medium	moderate	short-term
RISK-009	operational	medium	major	medium-term
RISK-010	regulatory	medium	minor	short-term
RISK-011	financial	high	moderate	short-term

Stakeholders

Name	Position	Power	Priority
European Commission (DG COMP: EU Merger Regulation and Foreign Subsidies Regulation review)	neutral	high	critical
Bundeskartellamt (German Federal Cartel Office)	neutral	high	important
UK Competition and Markets Authority (CMA)	neutral	medium	monitor
Member-state FDI screening authorities (e.g. German Economics Ministry under the revised EU FDI Screening Regulation)	neutral	high	important
Trade unions at the target (e.g. ver.di in Germany)	resistant	medium	important
European Works Councils and employee representatives at target and acquirer	neutral	medium	monitor
Competing bidders for the target	resistant	medium	important
Target owners and management (sellers)	unknown	high	critical
Acquirer's own board and shareholders	unknown	high	critical
Acquisition-finance lenders and bond investors	unknown	medium	important
Customers (shippers and procurement buyers) of the target and the acquirer	unknown	medium	important
Strategic consolidators and financial sponsors	unknown	high	critical

Adversarial Critique

Robustness: low
Critiques: 6 (critical=1, material=4, minor=1)
Revision needed: yes

Steelmanned alternative:
The board should first approve a time-boxed 8–10 week diagnostic: strategic objective, segment and overlap, FSR/FDI and call-in exposure, and a leverage envelope. In parallel, it should pursue a European partnership or minority JV with a call option (OPT-C) to test the revenue thesis with limited capital and no control premium. A move to control acquisitions should come only with an explicit commitment to a multi-deal programme and a dedicated M&A capability, so the company does not do a one-off 'selective' deal that the evidence links to underperformance.

CRIT-001 — hidden-assumption (critical)

Steelmanned position:
The So What section tells the board to approve OPT-A now. But the brief never establishes why the company wants Europe or what an acquisition is meant to achieve. Scoping lists 'that Europe is a strategic priority' and the strategic objective as unvalidated assumptions. The requester-provided section says segment, footprint, objective, budget, leverage tolerance and hurdle rate are all missing. The Answer admits value creation 'stays unquantified'. Without a defined objective you cannot tell whether a bolt-on beats a partnership or organic build, because each option solves a different problem: market access, capability, scale or defence. Approving a specific transaction structure before the objective is set is the classic strategy-follows-deal failure. A hostile reviewer would say the only defensible recommendation today is to approve a time-boxed diagnostic, not OPT-A.

Implication if true:
The recommendation should change from 'approve OPT-A' to 'approve an 8-week diagnostic and option-selection gate'. OPT-A, OPT-C and OPT-D should stay as equal candidates until the strategic objective and financial constraints are supplied.

Suggested revision:
Rewrite So What and Answer so that the board approves the diagnostic (objective, segment, overlap, FSR/FDI audit, leverage envelope) as the decision. Choose between OPT-A, OPT-C and OPT-D only once the gate completes.

Counter-evidence:
SOURCE_MISSING — searched for: Requester-provided strategic objective, segment, European footprint and hurdle rate. The brief's own requester-provided section confirms these are absent, and no public source can supply them.

CRIT-002 — weak-source (material)

Steelmanned position:
OPT-A's main evidence is McKinsey's programmatic M&A research, but the brief misapplies it. McKinsey defines programmatic M&A as more than two small or mid-sized deals a year, sustained over years. The 30% figure is a classification boundary, not a causal size cap. One deal by a company with no proven M&A capability and no committed pipeline is what McKinsey calls 'selective' M&A, a category it reports underperforms. The research also says the approach only works if M&A is treated as an enduring capability. So the evidence supports OPT-A only if the board commits to a multi-year, multi-deal programme with a dedicated M&A function. The brief does not ask for that commitment.

Implication if true:
Taken alone, one gated bolt-on gets no support from the programmatic evidence and may fall into the underperforming 'selective' category. OPT-A is only well supported if paired with a funded multi-deal programme and an in-house M&A capability.

Suggested revision:
Either add a board commitment to a multi-year programme (deal cadence, pipeline, dedicated M&A team) as a fifth gate, or drop the programmatic citation as evidence for a single deal and stop presenting the 30% figure as a value-protecting cap.

Counter-evidence:
Repeat performance: The continuing case for programmatic M&A — https://www.mckinsey.com/capabilities/strategy-and-corporate-finance/our-insights/repeat-performance-the-continuing-case-for-programmatic-m-and-a

CRIT-003 — overconfidence (material)

Steelmanned position:
The brief says a mid-sized target means 'fewer national filings' and that regulators 'will probably clear' the deal. It rates RISK-001 residual risk as low. The logic may run the other way. A deal below EU Merger Regulation thresholds loses the EU one-stop shop and becomes subject to several national regimes in parallel. A growing number of Member States can also call in deals that fall below their notification thresholds. The 'more than 90% clear in Phase I' figure covers all EU cases, most of them non-horizontal or simplified, so it is not a base rate for a horizontal competitor deal whose overlap is unknown. The low residual rating rests on a mitigation that simply avoids high-overlap targets, which is circular.

Implication if true:
OPT-A's regulatory advantage over OPT-B is smaller than claimed. A mid-sized deal could face a fragmented, multi-clock national process with call-in risk, and RISK-001 residual risk should be medium, not low.

Suggested revision:
Change OPT-A's regulatory tradeoff to flag multi-jurisdiction and call-in exposure for below-EUMR deals, add a call-in screen to the country-by-country filing map, and raise RISK-001 residual risk to medium until the overlap analysis is done.

Counter-evidence:
Catch me if you can (Part II) - below-threshold merger enforcement in the EU continues to evolve - WorthWeil Antitrust — https://antitrust.weil.com/catch-me-if-you-can-part-ii-below-threshold-merger-enforcement-in-the-eu-continues-to-evolve/

CRIT-004 — internal-contradiction (material)

Steelmanned position:
The brief asks for urgency because 'scarce targets' will go to rivals, and also tells the company to bid on cost synergies only while admitting that strategic rivals pay more. Those two positions cannot both hold. If targets are scarce and rivals price in revenue synergies, a cost-only ceiling will lose most competitive auctions, so OPT-A's expected outcome is mostly the OPT-C fallback. If targets are not scarce, the urgency case against OPT-C and OPT-D falls away. The brief's own research finding says most logistics deals were small or mid-cap, which points to plenty of mid-sized targets rather than scarcity. Either way, the speed-and-control advantage claimed for OPT-A is overstated.

Implication if true:
In practice OPT-A may be a slow, costly route to OPT-C, with advisory and diligence costs spent

on lost auctions. The 'doing nothing hands scarce targets to rivals' argument in So What then loses force.

Suggested revision:
Add an explicit estimate of win probability under cost-only pricing and of the cost of failed processes, and remove or evidence the 'scarce targets' claim, since the cited finding notes most deals are small or mid-cap.

Counter-evidence:
M&A FACTS — https://proventis.com/wp-content/uploads/2026/02/2026-02-02_MA-Facts_Logistics_H2-final.pdf

CRIT-005 — dismissed-option (material)

Steelmanned position:
OPT-C is ranked below OPT-A mainly because 40–60% of joint ventures miss their objectives, a figure taken from an untrusted-host blog. The brief applies no matching failure rate to acquisitions. The most widely cited figure puts acquisition failure at 70–90%. On a like-for-like comparison, a JV with a call option has a similar or better chance of success, much lower capital at risk, no control premium, no union trigger and high reversibility. It also tests the revenue thesis before the company pays for it. Holding OPT-C to a failure-rate standard that OPT-A is never held to is selective use of evidence.

Implication if true:
Without the asymmetric failure-rate argument, OPT-C is at least as defensible as OPT-A on risk-adjusted grounds, especially while the strategic objective and leverage tolerance are unknown. It should be co-recommended or made the first step.

Suggested revision:
Put comparable failure-rate evidence for acquisitions and JVs side by side in Supporting Arguments, and re-rank OPT-C on that basis instead of treating it only as a fallback.

Counter-evidence:
The Big Idea: The New M&A Playbook — https://hbr.org/2011/03/the-big-idea-the-new-ma-playbook

CRIT-006 — dismissed-option (minor)

Steelmanned position:
The brief dismisses OPT-B partly on the claim that integration costs average 120% of run-rate synergies, citing older McKinsey material. The closest sector precedent contradicts this. DSV booked about DKK 4.5bn of transaction and integration costs in 2025 against a DKK 9bn annual synergy target. It is integrating Schenker in about 20 months and reports low attrition among large customers. For a capable acquirer, a scale deal in a fragmented segment may create more value than a string of bolt-ons that each carry fixed deal costs.

Implication if true:
OPT-B should be rated as conditionally acceptable for an acquirer with proven integration capability, not 'not-recommended'. This does not change the current recommendation given the unverified M&A capacity.

Suggested revision:
Replace the generic 120% integration-cost figure with sector precedent such as DSV/Schenker, and make OPT-B conditional on verified integration capability rather than dismissing it outright.

Counter-evidence:
FULL-YEAR 2025 RESULTS DSV A/S Conference call — https://investor.dsv.com/static-files/230e1334-a09f-4ca3-8a3e-0ac0c16e57a5

Appendix A — Findings

Finding 1

Claim:
The European Commission published draft revised Merger Guidelines on 30 April 2026. They would replace the current horizontal and non-horizontal guidelines that a competitor acquisition would be assessed under.

Evidence:
The Commission press release says the new guidelines replace the existing Horizontal and Non-Horizontal Merger Guidelines and calls the draft the most significant reform in EU merger control. The consultation closed on 26 June 2026. The final text is not yet confirmed in this source, so the review standard could change during the 12–24 month deal window.

Source:
Commission opens consultation on draft of new Merger Guidelines — https://ec.europa.eu/commission/presscorner/api/files/document/print/en/ip_26_918/IP_26_918_EN.pdf

Finding 2

Claim:
The draft Merger Guidelines give more weight to scale benefits and efficiencies that support 'European champions'. This may help a consolidation case, but not as a guarantee.

Evidence:
A Skadden analysis says the draft changes how the Commission assesses killer acquisitions, ecosystems, dynamic competition, scale benefits and efficiencies. Law-firm commentary elsewhere in the search results describes the draft as evolution rather than a major enforcement shift. Treat this as a law-firm reading of a draft, not final law.

Source:
EC's Draft Merger Guidelines Open New Arguments for Merger Parties — https://www.skadden.com/insights/publications/2026/05/ecs-draft-merger-guidelines

Finding 3

Claim:
Under the EU Foreign Subsidies Regulation, a concentration must be notified if the target, a merging party or the joint venture has at least €500m EU turnover and the parties received more than €50m of foreign financial contributions in the past three years.

Evidence:
The Commission's DG GROW page sets out both cumulative thresholds for concentration reviews. Other results in the search show the Commission can also call in below-threshold deals, and that a 25-working-day standstill follows a complete notification. Whether the company is exposed depends on its non-EU state funding, which the requester has not yet provided.

Source:
Foreign subsidies regulation - Internal Market, Industry, Entrepreneurship and SMEs — https://single-market-economy.ec.europa.eu/single-market/public-procurement/foreign-subsidies-regulation_en

Finding 4

Claim:
The EU's FDI screening framework is being tightened: Council and Parliament agreed on 11

December 2025 to make national screening mandatory in all Member States, with a common minimum scope that also covers investments made through EU subsidiaries.

Evidence:
The Council press release describes a provisional agreement mandating screening mechanisms with a common minimum scope in all Member States. It says foreign investments made through EU subsidiaries are also covered. This means an acquirer using a European holding vehicle may still be screened.

Source:
Foreign direct investment: Council and Parliament reached political agreement to improve FDI screening - Consilium — https://www.consilium.europa.eu/en/press/press-releases/2025/12/11/foreign-direct-investment-council-and-parliament-reached-political-agreement-to-improve-fdi-screening/

Finding 5

Claim:
The revised EU FDI Screening Regulation was published in the Official Journal on 26 June 2026 and entered into force on 16 July 2026. It applies from 17 January 2028, so national regimes will vary during most of a 12–24 month deal window.

Evidence:
A Wolters Kluwer competition blog gives the publication, entry-into-force and application dates. It notes Germany plans to consolidate its screening rules into a unified Investment Screening Act. The source is not on the accepted-host list, so this fails the strict sourcing check. The primary Official Journal text should be confirmed.

Source:
The New Foreign Investment Screening Regulation: From Trilogues to the Official Journal — https://legalblogs.wolterskluwer.com/competition-blog/the-new-foreign-investment-screening-regulation-from-trilogues-to-the-official-journal/

Finding 6

Claim:
The closest recent precedent, DSV's €14.3bn all-cash acquisition of DB Schenker, was cleared by the European Commission in the normal merger review procedure without competition concerns. This shows a large European logistics consolidation can clear EU merger control.

Evidence:
The Commission approved the acquisition of sole control of Schenker AG by DSV under the EU Merger Regulation on 9 April 2025. It found limited competitive impact in the affected markets. Cargo Facts and other results in the search put the deal value at €14.3bn, and Cargo Facts reports the sale closed after the 8 April approval. This source is about 570 days old, so it counts as stale under the format's 545-day rule. The host is also not accepted.

Source:
EU Commission clears acquisition of Schenker by DSV — https://ieu-monitoring.com/editorial/eu-commission-clears-acquisition-of-schenker-by-dsv/608080

Finding 7

Claim:
Supply-chain and logistics software deals have a median multiple of 3.23x revenue and 13.3x EBITDA, with continental Western Europe lower at 2.55x revenue. The sample is small.

Evidence:
Aventis Advisors reports medians across 1,372 deals since 2015, with multiples based on only

59 revenue-multiple and 25 EBITDA-multiple deals. It reports 2.55x revenue for continental Western Europe from 8 deals, against 4.40x for the US. The source itself warns that few deals publish terms. The host is untrusted and no publication date is stated, so this is only an indicative benchmark.

Source:
Supply Chain and Logistics Software Valuation Multiples: EV/EBITDA & EV/Revenue — https://aventis-advisors.com/supply-chain-logistics-software-valuation-multiples/

Finding 8

Claim:
In European and North American logistics M&A in H2 2025, strategic buyers paid higher valuations than financial investors, and most deals were small or mid-cap.

Evidence:
Proventis recorded 278 logistics deals and €103bn of disclosed value, with one €78bn transaction driving most of the volume. It says strategic investors are driving consolidation. This supports looking at strategic synergies but also shows competition from financial buyers. The host is untrusted and the PDF states no publication date.

Source:
M&A FACTS — https://proventis.com/wp-content/uploads/2026/02/2026-02-02_MA-Facts_Logistics_H2-final.pdf

Appendix B — Stakeholders

Name	Category	Position	Power	Priority
European Commission (DG COMP: EU Merger Regulation and Foreign Subsidies Regulation review)	decision-maker	neutral	high	critical
Bundeskartellamt (German Federal Cartel Office)	gatekeeper	neutral	high	important
UK Competition and Markets Authority (CMA)	gatekeeper	neutral	medium	monitor
Member-state FDI screening authorities (e.g. Germany's AWV, France's DGTrésor)	gatekeeper	neutral	high	important
Trade unions at the target (e.g. European Works Council, German co-determination bodies)	affected-party	resistant	medium	important
Host-country economies (Germany)	affected-party	neutral	medium	monitor
Employee representatives at target and acquirer (Betriebsrat, SE Works Council)	influencer	resistant	medium	important
Councils and ministry under the revised EU framework	gatekeeper	unknown	high	critical
Target's own board and shareholders	decision-maker	unknown	high	critical
Acquirer's own consolidators and financial sponsors)	gatekeeper	unknown	medium	important
Acquisition finance lenders and bond investors	affected-party	unknown	medium	important
Customers (shippers and procurement buyers) of the target and the acquirer	affected-party	unknown	medium	important

Appendix C — Risk Register

ID	Category	Likelihood	Impact	Timeframe
RISK-001	regulatory	medium	major	short-term
RISK-002	regulatory	high	minor	short-term
RISK-003	regulatory	low	moderate	short-term
RISK-004	regulatory	medium	moderate	short-term
RISK-005	strategic	high	major	medium-term
RISK-006	financial	high	major	short-term
RISK-007	financial	high	moderate	short-term
RISK-008	human-capital	medium	moderate	short-term
RISK-009	operational	medium	major	medium-term
RISK-010	regulatory	medium	minor	short-term
RISK-011	financial	high	moderate	short-term

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Sourcing Report

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Warnings:

- [research] untrusted: https://www.skadden.com/insights/publications/2026/05/ecs-draft-merger-guidelines — host 'www.skadden.com' matches no reputation tier
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- [risk] RISK-004 .impact_evidence SOURCE_MISSING — Documented delays, conditions or blocked logistics and supply-chain deals under national FDI screening in the EU. The searches in this task returned nothing on FDI outcomes in the sector.
- [risk] untrusted: https://proventis.com/wp-content/uploads/2026/02/2026-02-02_MA-Facts_Logistics_H2-final.pdf — host 'proventis.com' matches no reputation tier
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- [risk] RISK-006 .impact_evidence SOURCE_MISSING — Evidence on control premiums paid and value destroyed by overpayment in European logistics or supply-chain acquisitions. No such result was returned in this task.
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- [risk] RISK-011 .impact_evidence SOURCE_MISSING — Evidence quantifying value lost when European logistics or supply-chain deals are priced off thin comparable sets. No result addressed this.
- [research] finding[41] SOURCE_MISSING — [CRIT-001] Requester-provided strategic objective, segment, European footprint and hurdle rate. The brief's own requester-provided section confirms these are absent, and no public source can supply them.

Untrusted citations:

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